

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 89-033

WASTE DISCHARGE REQUIREMENTS
FOR
NEW DON PEDRO RECREATIONAL SITES' WASTEWATER FACILITIES
(FLEMING MEADOWS, MOCCASIN POINT, AND BLUE OAKS)
NEW DON PEDRO RECREATION AGENCY (OPERATOR)
CITY AND COUNTY OF SAN FRANCISCO
TURLOCK IRRIGATION DISTRICT
MODESTO IRRIGATION DISTRICT
TUOLUMNE COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. New Don Pedro Recreational Sites' Wastewater Facilities (Fleming Meadows, Moccasin Point, and Blue Oaks); City and County of San Francisco; Turlock Irrigation District (TID); Modesto Irrigation District (MID); and New Don Pedro Recreation Agency, (jointly hereafter Discharger) submitted a Report of Waste Discharge and site evaluation reports, dated 12 February 1988. The property is owned by the City and County of San Francisco, Turlock Irrigation District (TID), and Modesto Irrigation District (MID), and is operated by the New Don Pedro Recreation Agency.
2. The Board, on 24 September 1970 adopted Resolutions No. 71-66, 71-67 and 71-68, which prescribed requirements for discharges from the Fleming Meadows, Moccasin Point, and Blue Oaks (formerly Right Abutment) wastewater facilities to land.
3. Wastewater treatment facilities consist of aerated stabilization ponds, effluent storage reservoirs, and spray fields for effluent disposal.
4. Present waste discharge requirements established by Resolutions No. 71-66, 71-67, and 71-68 are neither adequate nor consistent with plans and policies of the Board and will be consolidated and regulated under provisions of this Order.
5. The recreational areas have a total of 514 campsites, with RV dumps and full service marinas at Fleming Meadows on the West Shore and Moccasin Point on the East Shore. Wastewater from holding tanks of approximately 287 houseboats is also treated at Fleming Meadows and Moccasin Point.
6. The Discharger discharges 20,000, 10,000, and 7,000 gallons per day from Fleming Meadows, Moccasin Point, and Blue Oaks, respectively, to the aerated stabilization ponds.
7. Design capacities of the Fleming Meadows, Moccasin Point, and Blue Oaks wastewater facilities are 61,000, 22,000, and 28,600 gpd, respectively.

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8. The Fleming Meadows wastewater facility is in Section 10, T3S, R14E, MDB&M. Surface water drainage is to La Grange Reservoir (Tuolumne River).
9. Moccasin Point wastewater facility is in Section 20, T1S, R15E, MDB&M. Surface water drainage is to Don Pedro Reservoir.
10. Blue Oaks wastewater facility is in Section 4, T3S, R14E, MDB&M. Surface water drainage is to La Grange Reservoir (Tuolumne River).
11. The beneficial uses of La Grange Reservoir (Tuolumne River) and Lake Don Pedro are municipal, industrial, and agricultural supply; recreation; esthetic enjoyment; navigation; ground water recharge; fresh water replenishment; hydroelectric power generation; and preservation and enhancement of fish, wildlife and other aquatic resources.
12. The beneficial uses of the ground water are municipal, industrial, and agricultural supply.
13. The Board, on 25 July 1975, adopted a Water Quality Control Plan for the Sacramento-San Joaquin Delta Basin (5B), which contains water quality objectives. These requirements are consistent with that Plan.
14. The action to adopt waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act in accordance with Section 15301, Title 14, California Code of Regulations (CCR).
15. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge.
16. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Resolutions No. 71-66, 71-67, and 71-68 be rescinded and New Don Pedro Recreational Sites Wastewater Facilities: Fleming Meadows, Moccasin Point, Blue Oaks; City and County of San Francisco; Turlock Irrigation District (TID); Modesto Irrigation District (MID); and New Don Pedro Recreation Agency, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. The direct discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. The by-pass or overflow of untreated or partially treated waste is prohibited.
3. Resurfacing of wastewater from the ponds is prohibited.

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FLEMING MEADOWS, MOCCASIN POINT & BLUE OAKS
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B. Discharge Specifications:

1. Neither the treatment nor the discharge shall cause a pollution or nuisance as defined by the California Water Code, Section 13050.
2. The discharge shall not cause degradation of any water supply.
3. The discharge shall remain within the designated disposal area at all times.
4. The following constituent limitations shall apply to wastewater discharged to spray fields:

<u>Constituent</u>	<u>Units</u>	<u>Monthly Average</u>	<u>Daily Maximum</u>
20°C BOD ₅	mg/l	40	80
Settleable Matter	ml/l	0.5	1.0

5. The 30-day average daily dry weather discharge flow shall not exceed 61,000, 22,000, and 28,600 gpd, respectively, for Fleming Meadows, Moccasin Point, and Blue Oaks wastewater facilities.
6. Collected screening, sludges, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer.
7. Reclaimed wastewater shall meet the criteria contained in Title 22, Division 4, California Administrative Code (Section 60301, et seq.)
8. The dissolved oxygen content of holding ponds shall not be less than 1.0 mg/l for 16 hours in any 24-hour period.
9. Treated effluent storage reservoirs shall have a minimum freeboard of two feet.
10. The Discharger may not spray dispose of effluent during periods of precipitation or for at least 24 hours after cessation of precipitation.

C Provisions:

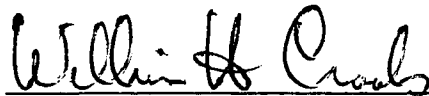
1. The Discharger may be required to submit technical reports as directed by the Executive Officer.
2. The Discharger shall submit, by 1 December 1989, for staff approval, a detailed report on septage, recreational vehicle, chemical toilet, and boat holding tank quantities, constituent levels (metals, formaldehyde, etc.), and disposal practices. Practices shall meet the requirements of Subchapter 15 of Title 23.

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3. The Discharger shall comply with the Standard Provisions and Reporting Program No. 89-033.
4. The Discharger shall report promptly to the Board any material change or proposed change in the character, location, or volume of the discharge.
5. In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the Discharger, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be forwarded to this office.
6. The Board will review this Order periodically and may revise requirements when necessary.

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 24 February 1989.



WILLIAM H. CROOKS, Executive Officer

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 89-033
FOR
NEW DON PEDRO RECREATIONAL SITES' WASTEWATER FACILITIES
(FLEMING MEADOWS, MOCCASIN POINT, AND BLUE OAKS)
CITY AND COUNTY OF SAN FRANCISCO
TURLOCK IRRIGATION DISTRICT
MODESTO IRRIGATION DISTRICT
NEW DON PEDRO RECREATION AGENCY (OPERATOR)
TUOLUMNE COUNTY

INFLUENT MONITORING

The following shall constitute the influent monitoring program:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Flow	gpd	Cumulative*	Daily
Formaldehyde**	mg/l	Grab	Monthly during June-Sept

* Flow determinations can be based on accurate water use records, if appropriate.

** Monitoring of the constituents will cease at the end of the June-September 1989 monitoring period, pending staff review and revision of the monitoring program, as appropriate.

A log shall be kept which quantifies the amount of septage, recreational vehicle, chemical toilet waste, and boat holding tank waste received by the District on a monthly basis. This information shall be included in the monthly monitoring report.

EFFLUENT MONITORING

Effluent samples shall be collected just prior to discharge to the spray fields, with the exception of formaldehyde and ICAP metals samples, which shall be collected prior to discharge to holding reservoir. Effluent samples should be representative of the volume and nature of the discharge. Samples collected from the outlet structure of ponds will be considered adequately composited. Time of collection of a grab sample shall be recorded. The following shall constitute the effluent monitoring program:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
20°C BOD ₅	mg/l	Grab	Monthly
Settleable Matter	ml/l	Grab	Monthly
Formaldehyde**	mg/l	Grab	Monthly-during Jun-Sept

MONITORING AND REPORTING PROGRAM
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FLEMING MEADOWS, MOCCASIN POINT, & BLUE OAKS
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<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
ICAP metals**	mg/l	Grab	Once during Jun-Sept peak use season

- * Flow determinations can be based on accurate water use records, if appropriate.
- ** Monitoring of the constituents will cease at the end of the June-September 1989 monitoring period, pending staff review and revision of the monitoring program, as appropriate.

SLUDGE SAMPLING

Accumulated sludges in the aerated stabilization ponds shall be sampled as follows:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
ICAP metals**	mg/l	Grab	Once during Jun-Sept peak use season

- ** Monitoring of the constituents will cease at the end of the June-September 1989 monitoring period, pending staff review and revision of the monitoring program, as appropriate.

STORAGE RESERVOIR MONITORING

<u>Constituents</u>	<u>Units</u>	<u>Sampling Frequency</u>
Dissolved Oxygen	mg/l	Weekly
Reservoir Elevation	Feet	Weekly

In conducting the reservoir water sampling, a log shall be kept of the effluent reservoir condition. Attention shall be given to the presence or absence of:

- Floating or suspended matter
- Discoloration
- Bottom deposits
- Aquatic life

MONITORING AND REPORTING PROGRAM
NEW DON PEDRO RECREATIONAL SITES
WASTEWATER FACILITIES
FLEMING MEADOWS, MOCCASIN POINT, & BLUE OAKS
TUOLUMNE COUNTY

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REPORTING

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly the compliance with waste discharge requirements.

Monthly monitoring reports shall be submitted to the Regional Board by the 15th day of the following month.

The results of any monitoring done more frequently than required at the locations specified in the Monitoring and Reporting Program shall be reported to the Board.

Upon written request of the Board, the Discharger shall submit a report to the Board by 30 January of each year. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. In addition, the Discharger shall discuss the compliance record and the corrective actions taken or planned which may be needed to bring the discharge into full compliance with the waste discharge requirements.

The Discharger shall implement the above monitoring program on the effective date of this Order.

Ordered by William H. Crooks
WILLIAM H. CROOKS, Executive Officer

24 February 1989

Date

Revised:12/15/88:HJL:gs

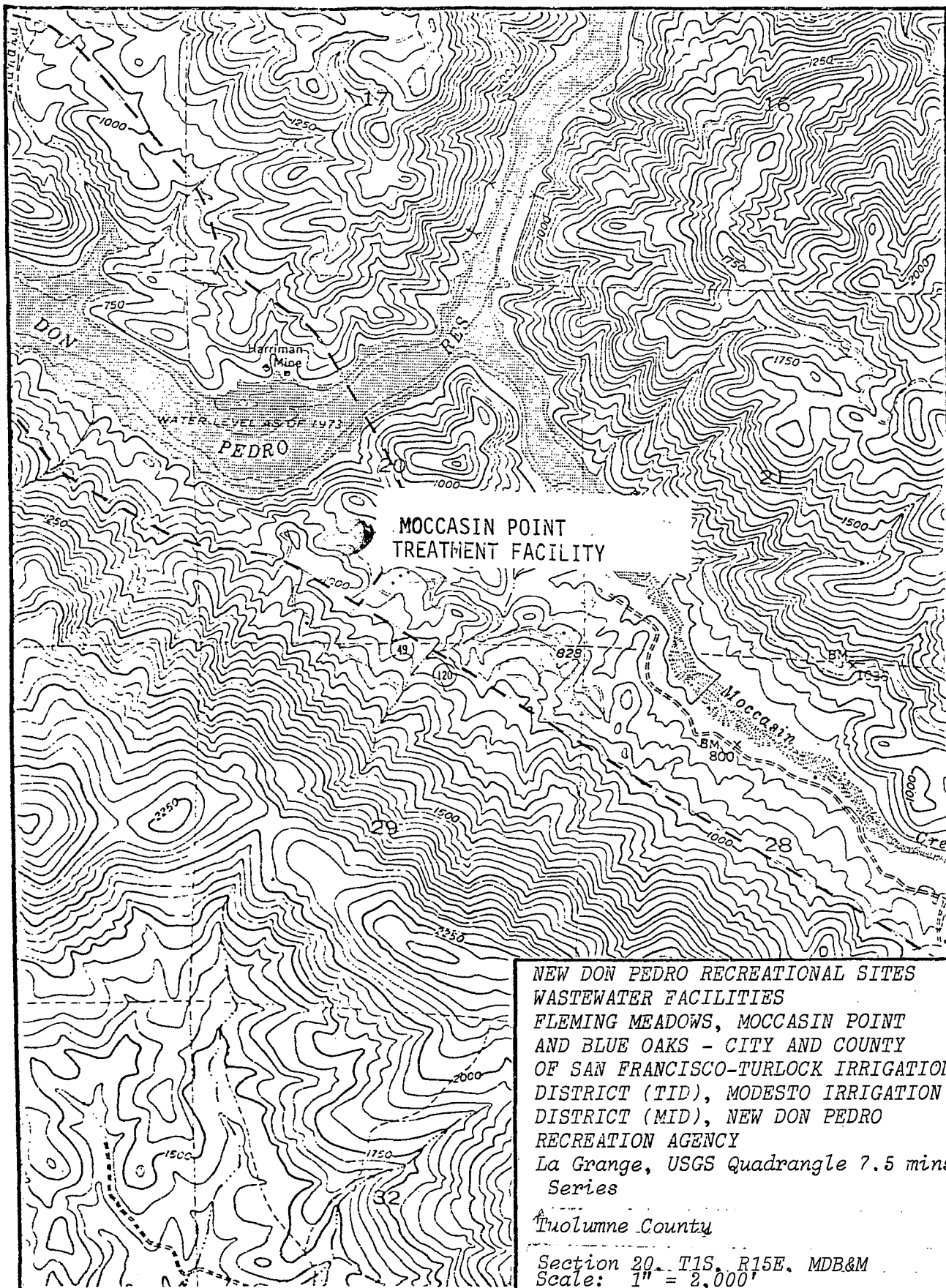
INFORMATION SHEET

NEW DON PEDRO RECREATIONAL SITES
WASTEWATER FACILITIES
FLEMING MEADOWS, MOCCASIN POINT & BLUE OAKS
TUOLUMNE COUNTY

Lake Don Pedro Recreation Agency operates three wastewater facilities for recreational areas around Lake Don Pedro: Fleming Meadows, Moccasin Point, and Blue Oaks (formerly Right Abutment). The wastewater facilities, which are regulated by Resolutions No. 71-66, 71-67, and 71-68, consist of aerated stabilization ponds, effluent holding reservoirs, and spray disposal areas. The recreational areas have a total of 514 campsites, with RV dumps and full service marinas at Fleming Meadows on the West Shore, and Moccasin Point on the East Shore. Design capacities of the systems are 61,000, 22,000, and 21,600 gpd, respectively, with current flows of 20,000, 10,000, and 7,000 gpd, respectively.

Surface water drainage is to La Grange Reservoir (Tuolumne River) and Lake Don Pedro Reservoir. Requirements are being updated to reflect current plans and policies of the Board.

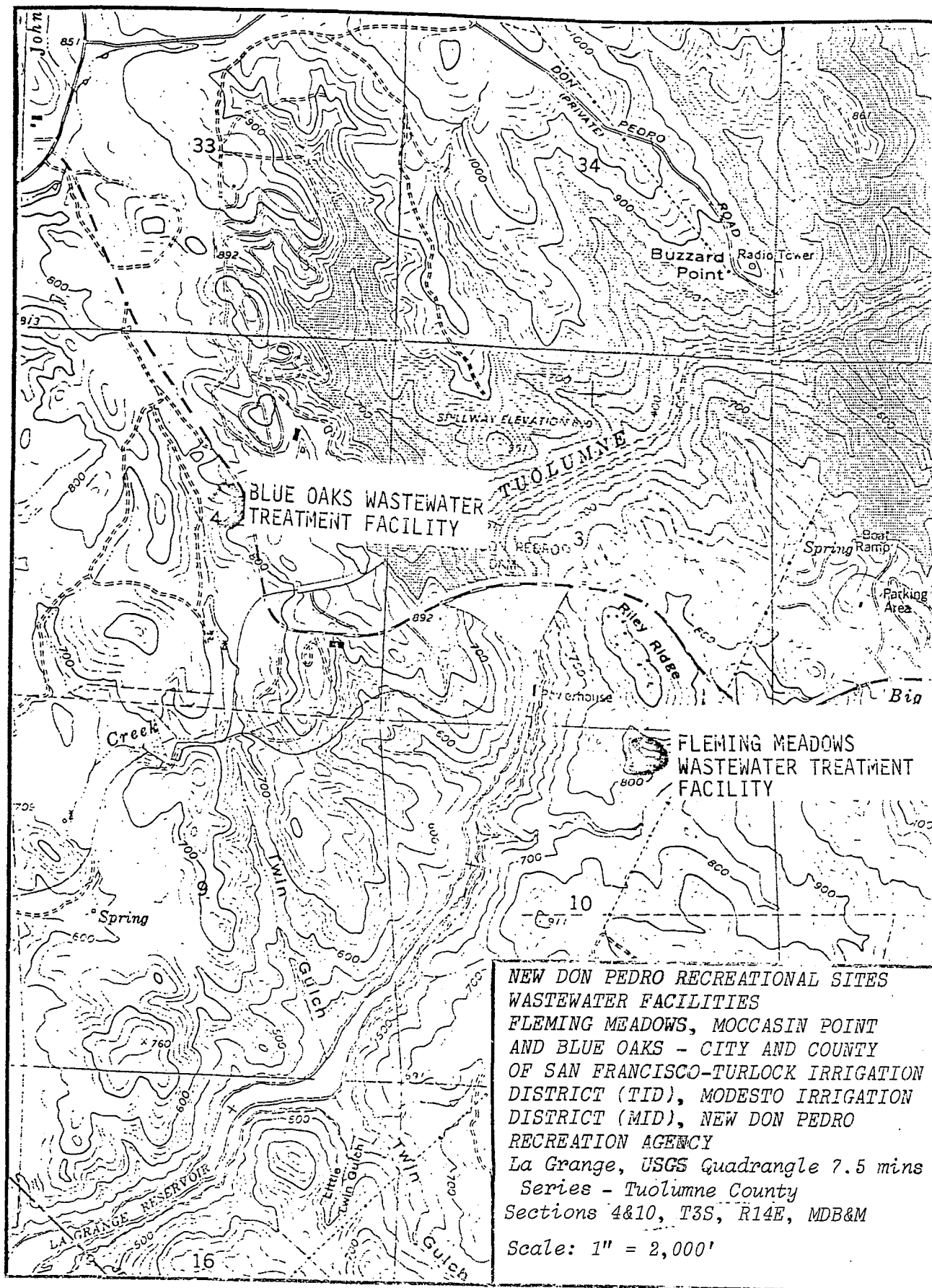
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NEW DON PEDRO RECREATIONAL SITES
WASTEWATER FACILITIES
FLEMING MEADOWS, MOCCASIN POINT
AND BLUE OAKS - CITY AND COUNTY
OF SAN FRANCISCO-TURLOCK IRRIGATION
DISTRICT (TID), MODESTO IRRIGATION
DISTRICT (MID), NEW DON PEDRO
RECREATION AGENCY
La Grange, USGS Quadrangle 7.5 mins.
Series

Truolumne County

Section 20, T1S, R15E, MDB&M
Scale: 1" = 2,000'



RESOLUTION
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION
WASTE DISCHARGE REQUIREMENTS
FOR
NEW DON PEDRO PROJECT - RECREATIONAL SITES
FLEMING MEADOWS
TUOLUMNE COUNTY

RESOLUTION No. 71-66

ADOPTED: 9/24/70

WHEREAS, THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT HAVE PROPOSED TO DEVELOP AND OPERATE PUBLIC RECREATIONAL FACILITIES AT THE NEW DON PEDRO RESERVOIR; AND

WHEREAS, THE FLEMING MEADOWS RECREATIONAL AREA, WHICH IS LOCATED IN SECTIONS 2 AND 3, T3S, R14E, AT NEW DON PEDRO DAM, IS A PART OF THE ABOVE PROPOSED DEVELOPMENT; AND

WHEREAS, THIS RECREATIONAL SITE, ITS WASTE DISCHARGE TREATMENT FACILITIES, AND EFFLUENT DISPOSAL SITE ARE LOCATED NEAR AND ABOVE THE HIGH WATER POOL OF THE NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER; AND

WHEREAS, USES OF THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER BELOW IT INCLUDE MUNICIPAL WATER SUPPLY, IRRIGATION, PROPAGATION OF FISH AND AQUATIC LIFE, STOCK AND WILDLIFE WATERING, RECREATIONAL USE, POWER PRODUCTION, AND AESTHETIC USE; AND

WHEREAS, LARGE NUMBERS OF PEOPLE WILL BE VISITING AND USING THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER FOR THE PURPOSE OF RECREATION, FISHING, AND AESTHETIC ENJOYMENT; AND

WHEREAS, IT IS THE INTENT OF THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, TO REGULATE THIS WASTE DISCHARGE TO PROTECT THE BENEFICIAL USES OF THE WATERS OF THE STATE AND TO PREVENT NUISANCE; THEREFORE BE IT

RESOLVED, THAT THE FOLLOWING REQUIREMENTS SHALL GOVERN THE TREATMENT AND/OR DISCHARGE OF WASTES AT FLEMING MEADOWS BY THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT:

1. THE DISCHARGE SHALL NOT CAUSE A POLLUTION OF GROUND OR SURFACE WATERS.
2. NEITHER THE TREATMENT NOR THE DISCHARGE SHALL CAUSE A NUISANCE.
3. THE WASTE DISCHARGE SHALL NOT DIRECTLY ENTER SURFACE WATERS OR SURFACE WATER DRAINAGE COURSES.

REVISED 8/27/70 LAM/CA

NEW DON PEDRO PROJECT - RECREATIONAL SITES
TUOLUMNE COUNTY

RESOLVED, FURTHER, THAT THE ATTACHED "EXPLANATION OF REQUIREMENTS" (APPENDIX A) IS A PART OF THESE REQUIREMENTS; AND

RESOLVED, FURTHER, THAT THE DISCHARGER MAY BE REQUIRED TO FURNISH TECHNICAL OR MONITORING PROGRAM REPORTS; AND

RESOLVED, FURTHER, THAT THE DISCHARGER SHALL REPORT PROMPTLY TO THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, ANY MATERIAL CHANGE OR PROPOSED CHANGE IN THE CHARACTER, LOCATION, OR VOLUME OF THE DISCHARGE.

THIS RESOLUTION DOES NOT CONSTITUTE A LICENSE OR PERMIT; NEITHER DOES IT AUTHORIZE THE COMMISSION OF ANY ACT RESULTING IN INJURY TO THE PROPERTY OF ANOTHER, NOR DOES IT PROTECT THE DISCHARGER FROM HIS LIABILITIES UNDER FEDERAL, STATE, OR LOCAL LAWS.

THE BOARD WILL REVIEW THIS RESOLUTION PERIODICALLY, AND MAY REVISE THE REQUIREMENTS WHEN NECESSARY.

Norma Z. Alvarado
CHAIRMAN

ATTEST:

Chas. J. Barak
EXECUTIVE OFFICER

6/12/70 LAM/CA

RESOLUTION
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION
WASTE DISCHARGE REQUIREMENTS
FOR
NEW DON PEDRO PROJECT - RECREATIONAL SITES
MOCCASIN POINT
TUOLUMNE COUNTY

RESOLUTION No. 71-67

ADOPTED: 9/24/70

WHEREAS, THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT HAVE PROPOSED TO DEVELOP AND OPERATE PUBLIC RECREATIONAL FACILITIES AT THE NEW DON PEDRO RESERVOIR; AND

WHEREAS, THE MOCCASIN POINT RECREATIONAL AREA, WHICH IS LOCATED IN SECTIONS 20, 28, AND 29 OF T1S, R15E, SOME TWO MILES NORTHWEST OF THE TOWN OF MOCCASIN, CALIFORNIA, IS A PART OF THE ABOVE PROPOSED DEVELOPMENT; AND

WHEREAS, THIS RECREATIONAL SITE, ITS WASTE DISCHARGE TREATMENT FACILITIES, AND EFFLUENT DISPOSAL SITE ARE LOCATED NEAR AND ABOVE THE HIGH WATER POOL OF THE NEW DON PEDRO RESERVOIR; AND

WHEREAS, USES OF THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER BELOW IT INCLUDE MUNICIPAL WATER SUPPLY, IRRIGATION, PROPAGATION OF FISH AND AQUATIC LIFE, STOCK AND WILDLIFE WATERING, RECREATIONAL USE, POWER PRODUCTION, AND AESTHETIC USE; AND

WHEREAS, LARGE NUMBERS OF PEOPLE WILL BE VISITING AND USING THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER FOR THE PURPOSE OF RECREATION, FISHING, AND AESTHETIC ENJOYMENT; AND

WHEREAS, IT IS THE INTENT OF THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, TO REGULATE THIS WASTE DISCHARGE TO PROTECT THE BENEFICIAL USES OF THE WATERS OF THE STATE AND TO PREVENT NUISANCE; THEREFORE BE IT

RESOLVED, THAT THE FOLLOWING REQUIREMENTS SHALL GOVERN THE TREATMENT AND/OR DISCHARGE OF WASTES AT MOCCASIN POINT BY THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT:

1. THE DISCHARGE SHALL NOT CAUSE A POLLUTION OF GROUND OR SURFACE WATERS.
2. NEITHER THE TREATMENT NOR THE DISCHARGE SHALL CAUSE A NUISANCE.
3. THE WASTE DISCHARGE SHALL NOT DIRECTLY ENTER SURFACE WATERS OR SURFACE WATER DRAINAGE COURSES.

REVISED 8/27/70 LAM/CA

NEW DON PEDRO PROJECT - RECREATIONAL SITES
TUOLUMNE COUNTY

RESOLVED, FURTHER, THAT THE ATTACHED "EXPLANATION OF REQUIREMENTS" (APPENDIX A) IS A PART OF THESE REQUIREMENTS; AND

RESOLVED, FURTHER, THAT THE DISCHARGER MAY BE REQUIRED TO FURNISH TECHNICAL OR MONITORING PROGRAM REPORTS; AND

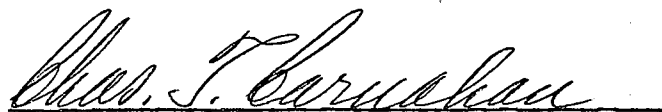
RESOLVED, FURTHER, THAT THE DISCHARGER SHALL REPORT PROMPTLY TO THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, ANY MATERIAL CHANGE OR PROPOSED CHANGE IN THE CHARACTER, LOCATION, OR VOLUME OF THE DISCHARGE.

THIS RESOLUTION DOES NOT CONSTITUTE A LICENSE OR PERMIT; NEITHER DOES IT AUTHORIZE THE COMMISSION OF ANY ACT RESULTING IN INJURY TO THE PROPERTY OF ANOTHER, NOR DOES IT PROTECT THE DISCHARGER FROM HIS LIABILITIES UNDER FEDERAL, STATE, OR LOCAL LAWS.

THE BOARD WILL REVIEW THIS RESOLUTION PERIODICALLY, AND MAY REVISE THE REQUIREMENTS WHEN NECESSARY.


CHAIRMAN

ATTEST:


EXECUTIVE OFFICER

6/12/70 LAM/CA

APPENDIX A

EXPLANATION OF REQUIREMENTS

1. THE DISCHARGE SHALL NOT CAUSE A POLLUTION OF GROUND OR SURFACE WATERS.

POLLUTION MEANS AN ALTERATION OF THE QUALITY OF THE WATERS OF THE STATE BY WASTE TO A DEGREE WHICH UNREASONABLY AFFECTS: (1) SUCH WATERS FOR BENEFICIAL USES, OR (2) FACILITIES WHICH SERVE SUCH BENEFICIAL USES. POLLUTION INCLUDES CONTAMINATION WHICH MEANS AN IMPAIRMENT OF THE WATERS OF THE STATE BY WASTE TO A DEGREE WHICH CREATES A HAZARD TO THE PUBLIC HEALTH THROUGH POISONING OR THROUGH THE SPREAD OF DISEASE.

2. NEITHER THE TREATMENT NOR THE DISCHARGE SHALL CAUSE A NUISANCE.

NUISANCE MEANS ANYTHING WHICH: (1) IS INJURIOUS TO HEALTH, OR IS INDECENT OR OFFENSIVE TO THE SENSES, OR AN OBSTRUCTION TO THE FREE USE OF PROPERTY, SO AS TO INTERFERE WITH THE COMFORTABLE ENJOYMENT OF LIFE OR PROPERTY, AND (2) AFFECTS AT THE SAME TIME AN ENTIRE COMMUNITY OR NEIGHBORHOOD, OR ANY CONSIDERABLE NUMBER OF PERSONS, ALTHOUGH THE EXTENT OF THE ANNOYANCE OR DAMAGE INFLICTED UPON INDIVIDUALS MAY BE UNEQUAL, AND (3) OCCURS DURING OR AS A RESULT OF THE TREATMENT OR DISCHARGE OF WASTES.

3. THE WASTE DISCHARGE SHALL NOT DIRECTLY ENTER SURFACE WATERS OR SURFACE WATER DRAINAGE COURSES.

SECTION 13243 OF THE PORTER-COLOGNE WATER QUALITY CONTROL ACT STATES: "A REGIONAL BOARD, IN A WATER QUALITY CONTROL PLAN OR IN WASTE DISCHARGE REQUIREMENTS, MAY SPECIFY CERTAIN CONDITIONS OR AREAS WHERE THE DISCHARGE OF WASTE OR CERTAIN TYPES OF WASTE, WILL NOT BE PERMITTED."

THE CONDITIONS STIPULATED UNDER THIS REQUIREMENT ARE THAT THERE BE NO IDENTIFIABLE DIRECT CONTINUITY BETWEEN ANY PORTION OF THE DISCHARGE AND SURFACE WATERS.

MONITORING PROGRAM:

SECTION 13267, DIVISION 7, CALIFORNIA WATER CODE, STATES, IN PART, THAT THE REGIONAL BOARD "MAY REQUIRE THAT ANY PERSON DISCHARGING OR PROPOSING TO DISCHARGE WASTE . . . SHALL FURNISH, UNDER PENALTY OF PERJURY, SUCH TECHNICAL OR MONITORING REPORTS AS THE BOARD MAY SPECIFY . . .".

CUSTOMARILY, THIS PROGRAM IS DEVELOPED IN CONSULTATION WITH BOARD STAFF AND THE DISCHARGER, AND MAY BE AMENDED FROM TIME-TO-TIME TO MAINTAIN A MAXIMUM OF EFFECTIVENESS CONSISTENT WITH COSTS AND EFFORTS INVOLVED.

RESOLUTION
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION
WASTE DISCHARGE REQUIREMENTS
FOR
NEW DON PEDRO PROJECT - RECREATIONAL SITES
RIGHT ABUTMENT
TUOLUMNE COUNTY

RESOLUTION No. 71-68

ADOPTED: 9/24/70

WHEREAS, THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT HAVE PROPOSED TO DEVELOP AND OPERATE PUBLIC RECREATIONAL FACILITIES AT THE NEW DON PEDRO RESERVOIR; AND

WHEREAS, THE RIGHT ABUTMENT RECREATIONAL AREA, WHICH IS LOCATED IN SECTION 33, T2S, R14E, AND SECTION 4, T3S, R14E, AT NEW DON PEDRO DAM, IS A PART OF THE ABOVE PROPOSED DEVELOPMENT; AND

WHEREAS, THIS RECREATIONAL SITE, ITS WASTE DISCHARGE TREATMENT FACILITIES, AND EFFLUENT DISPOSAL SITE ARE LOCATED NEAR AND ABOVE THE HIGH WATER POOL OF THE NEW DON PEDRO RESERVOIR; AND

WHEREAS, USES OF THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER BELOW IT INCLUDE MUNICIPAL WATER SUPPLY, IRRIGATION, PROPAGATION OF FISH AND AQUATIC LIFE, STOCK AND WILDLIFE WATERING, RECREATIONAL USE, POWER PRODUCTION, AND AESTHETIC USE; AND

WHEREAS, LARGE NUMBERS OF PEOPLE WILL BE VISITING AND USING THE WATERS OF NEW DON PEDRO RESERVOIR AND THE TUOLUMNE RIVER FOR THE PURPOSE OF RECREATION, FISHING, AND AESTHETIC ENJOYMENT; AND

WHEREAS, IT IS THE INTENT OF THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, TO REGULATE THIS WASTE DISCHARGE TO PROTECT THE BENEFICIAL USES OF THE WATERS OF THE STATE AND TO PREVENT NUISANCE; THEREFORE BE IT

RESOLVED, THAT THE FOLLOWING REQUIREMENTS SHALL GOVERN THE TREATMENT AND/OR DISCHARGE OF WASTES AT RIGHT ABUTMENT BY THE MODESTO IRRIGATION DISTRICT AND THE TURLOCK IRRIGATION DISTRICT:

1. THE DISCHARGE SHALL NOT CAUSE A POLLUTION OF GROUND OR SURFACE WATERS.
2. NEITHER THE TREATMENT NOR THE DISCHARGE SHALL CAUSE A NUISANCE.
3. THE WASTE DISCHARGE SHALL NOT DIRECTLY ENTER SURFACE WATERS OR SURFACE WATER DRAINAGE COURSES.

REVISED 8/27/70 LAM/CA

NEW DON PEDRO PROJECT - RECREATIONAL SITES
TUOLUMNE COUNTY

RESOLVED, FURTHER, THAT THE ATTACHED "EXPLANATION OF REQUIREMENTS" (APPENDIX A) IS A PART OF THESE REQUIREMENTS; AND

RESOLVED, FURTHER, THAT THE DISCHARGER MAY BE REQUIRED TO FURNISH TECHNICAL OR MONITORING PROGRAM REPORTS; AND

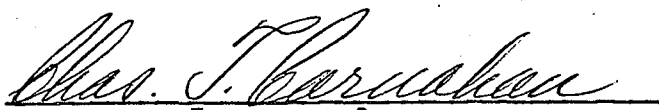
RESOLVED, FURTHER, THAT THE DISCHARGER SHALL REPORT PROMPTLY TO THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, CENTRAL VALLEY REGION, ANY MATERIAL CHANGE OR PROPOSED CHANGE IN THE CHARACTER, LOCATION, OR VOLUME OF THE DISCHARGE.

THIS RESOLUTION DOES NOT CONSTITUTE A LICENSE OR PERMIT; NEITHER DOES IT AUTHORIZE THE COMMISSION OF ANY ACT RESULTING IN INJURY TO THE PROPERTY OF ANOTHER, NOR DOES IT PROTECT THE DISCHARGER FROM HIS LIABILITIES UNDER FEDERAL, STATE, OR LOCAL LAWS.

THE BOARD WILL REVIEW THIS RESOLUTION PERIODICALLY, AND MAY REVISE THE REQUIREMENTS WHEN NECESSARY.


CHAIRMAN

ATTEST:


EXECUTIVE OFFICER

6/12/70 LAM/CA

APPENDIX A

EXPLANATION OF REQUIREMENTS

1. THE DISCHARGE SHALL NOT CAUSE A POLLUTION OF GROUND OR SURFACE WATERS.

POLLUTION MEANS AN ALTERATION OF THE QUALITY OF THE WATERS OF THE STATE BY WASTE TO A DEGREE WHICH UNREASONABLY AFFECTS: (1) SUCH WATERS FOR BENEFICIAL USES, OR (2) FACILITIES WHICH SERVE SUCH BENEFICIAL USES. POLLUTION INCLUDES CONTAMINATION WHICH MEANS AN IMPAIRMENT OF THE WATERS OF THE STATE BY WASTE TO A DEGREE WHICH CREATES A HAZARD TO THE PUBLIC HEALTH THROUGH POISONING OR THROUGH THE SPREAD OF DISEASE.

2. NEITHER THE TREATMENT NOR THE DISCHARGE SHALL CAUSE A NUISANCE.

NUISANCE MEANS ANYTHING WHICH: (1) IS INJURIOUS TO HEALTH, OR IS INDECENT OR OFFENSIVE TO THE SENSES, OR AN OBSTRUCTION TO THE FREE USE OF PROPERTY, SO AS TO INTERFERE WITH THE COMFORTABLE ENJOYMENT OF LIFE OR PROPERTY, AND (2) AFFECTS AT THE SAME TIME AN ENTIRE COMMUNITY OR NEIGHBORHOOD, OR ANY CONSIDERABLE NUMBER OF PERSONS, ALTHOUGH THE EXTENT OF THE ANNOYANCE OR DAMAGE INFLICTED UPON INDIVIDUALS MAY BE UNEQUAL, AND (3) OCCURS DURING OR AS A RESULT OF THE TREATMENT OR DISCHARGE OF WASTES.

3. THE WASTE DISCHARGE SHALL NOT DIRECTLY ENTER SURFACE WATERS OR SURFACE WATER DRAINAGE COURSES.

SECTION 13243 OF THE PORTER-COLOGNE WATER QUALITY CONTROL ACT STATES: "A REGIONAL BOARD, IN A WATER QUALITY CONTROL PLAN OR IN WASTE DISCHARGE REQUIREMENTS, MAY SPECIFY CERTAIN CONDITIONS OR AREAS WHERE THE DISCHARGE OF WASTE OR CERTAIN TYPES OF WASTE, WILL NOT BE PERMITTED."

THE CONDITIONS STIPULATED UNDER THIS REQUIREMENT ARE THAT THERE BE NO IDENTIFIABLE DIRECT CONTINUITY BETWEEN ANY PORTION OF THE DISCHARGE AND SURFACE WATERS.

MONITORING PROGRAM:

SECTION 13267, DIVISION 7, CALIFORNIA WATER CODE, STATES, IN PART, THAT THE REGIONAL BOARD "MAY REQUIRE THAT ANY PERSON DISCHARGING OR PROPOSING TO DISCHARGE WASTE . . . SHALL FURNISH, UNDER PENALTY OF PERJURY, SUCH TECHNICAL OR MONITORING REPORTS AS THE BOARD MAY SPECIFY . . .".

CUSTOMARILY, THIS PROGRAM IS DEVELOPED IN CONSULTATION WITH BOARD STAFF AND THE DISCHARGER, AND MAY BE AMENDED FROM TIME-TO-TIME TO MAINTAIN A MAXIMUM OF EFFECTIVENESS CONSISTENT WITH COSTS AND EFFORTS INVOLVED.